

Alexandrina Katherine Montgomery Reyes

Name

118 Maple Street, Apartment 1204

Mailing Address

Helena, MT 59601

City

State

Zip Code

406-555-0142

Phone Number

jordan.reyes@example.org

E-mail Address (optional)

FORM B:
Use this form for
Expungement or
Redesignation where
Sentence has been served

☐ MONTANA _____ JUDICIAL DISTRICT COURT, _____ COUNTY

☒ IN THE JUSTICE COURT OF Lewis and Clark COUNTY, STATE OF
MONTANA

☐ IN THE MUNICIPAL OR CITY COURT OF _____, MONTANA

In re the Expungement or Redesignation of
the Marijuana-Related Conviction of

Alexandrina Katherine Montgomery Reyes,
Petitioner.

Case No: _____

Petition for Expungement or
Redesignation of Conviction

I hereby petition this Court for expungement or redesignation of the following conviction
in accordance with the Montana Marijuana Regulation and Taxation Act (MMRTA).

Venue for this Petition is proper in this Court because this is the Court in which I was
sentenced for this offense.

On or about 11/15/2018 (date), I was convicted of the following
offense that I believe is eligible for expungement or redesignation under the MMRTA:

- ☐ Criminal Distribution of Dangerous Drugs (marijuana),
in violation of § 45-9-101, MCA;
- ☒ Criminal Possession of Dangerous Drugs (marijuana),
in violation of § 45-9-102, MCA;
- ☐ Criminal Possession with Intent to Distribute (marijuana),
in violation of § 45-9-103, MCA;
- ☐ Criminal Production or Manufacture of Dangerous Drugs (marijuana),
in violation of § 45-9-110, MCA;
- ☐ Criminal Possession of Drug Paraphernalia (marijuana),
in violation of § 45-10-103, MCA;

☐ Manufacture or Delivery of Drug Paraphernalia (marijuana),
in violation of § 45-10-104, MCA;

☐ _____ (specify offense)

I completed my sentence for this conviction on or about 11/15/2019.

I believe this conviction is eligible for ☐ expungement / ☐ redesignation as a
misdemeanor / ☐ redesignation as a civil infraction because _____

I ☐ am / ☐ am not requesting a hearing on this Petition.

I have filed the following documents along with this Petition:

- ☐ A copy of my criminal record from the Montana Department of Justice. *(required)*
- ☐ My Certificate of Service that indicates how I served copies of these documents upon the County Attorney for the County in which I am filing this Petition. *(required)*
- ☐ A copy of the Judgment or Sentencing Order for this conviction. *(recommended)*
- ☐ A proposed Order granting this Petition.
- ☐ Other: _____

Dated this _____ day of _____, 20____.

(date) (month) (year)

(your signature)

Alexandrina Katherine Montgomery Reyes

(print your name)

CERTIFICATE OF SERVICE

The undersigned hereby certifies that true and correct copies of the foregoing document were, this day, served upon the following individuals by U.S. Mail and/or e-mail and addressed as follows:

Lewis and Clark County Attorney

Name of County Attorney

100 Example Civic Avenue

Mailing Address

Suite 200

Mailing Address

Helena, MT 59601

City

State

Zip Code

406-555-0111

Phone Number

county-attorney@example.org

E-mail Address (optional)

Dated this _____ day of _____, 20____.

(date)

(month)

(year)

(your signature)

Alexandrina Katherine Montgomery Reyes

(print your name)

Alexandrina Katherine Montgomery Reyes

Name

118 Maple Street, Apartment 1204

Mailing Address

Helena, MT 59601

City

State

Zip Code

406-555-0142

Phone Number

jordan.reyes@example.org

E-mail Address (optional)

☐ **MONTANA** _____ **JUDICIAL DISTRICT COURT**, _____ **COUNTY**

☒ **IN THE JUSTICE COURT OF** Lewis and Clark **COUNTY, STATE OF**
MONTANA

☐ **IN THE MUNICIPAL OR CITY COURT OF** _____, **MONTANA**

In re the Expungement, Resentencing, or
Redesignation of the Marijuana-Related
Conviction of

Alexandrina Katherine Montgomery Reyes,

Petitioner.

Case No: _____

Proposed Order Granting

- ☐ Expungement of Conviction
☐ Resentencing of Conviction
☐ Redesignation of Conviction

Petitioner has requested ☐ Expungement / ☐ Resentencing / ☐ Redesignation of a criminal conviction pursuant to the Montana Marijuana Regulation and Taxation Act (MMRTA).

On or about _____ (date), Petitioner was convicted of the following offense:

- ☐ Criminal Distribution of Dangerous Drugs (marijuana),
in violation of § 45-9-101, MCA;
- ☐ Criminal Possession of Dangerous Drugs (marijuana),
in violation of § 45-9-102, MCA;
- ☐ Criminal Possession with Intent to Distribute (marijuana),
in violation of § 45-9-103, MCA;
- ☐ Criminal Production or Manufacture of Dangerous Drugs (marijuana),
in violation of § 45-9-110, MCA;
- ☐ Criminal Possession of Drug Paraphernalia (marijuana),
in violation of § 45-10-103, MCA;

☐ Manufacture or Delivery of Drug Paraphernalia (marijuana),
in violation of § 45-10-104, MCA;

☐ _____ (specify offense)

Petitioner is ☐ currently serving / ☐ has completed the sentence for this conviction.

On _____ (date), Petitioner served the County Attorney of
_____ County with the Petition. The County Attorney ☐ opposed
/ ☐ did not oppose this Petition.

This Court ☐ held / ☐ did not hold a hearing on this Petition.

IT IS THEREFORE ORDERED:

Pursuant to § 16-12-113(6), MCA, this Court GRANTS the Petition as follows:

☐ The above-described conviction is hereby EXPUNGED.

☐ The above-described conviction is hereby REDESIGNATED AS A MISDEMEANOR
OFFENSE, specifically: _____ ,

and Petitioner is RESENTENCED as follows: _____

☐ The above-described conviction is hereby REDESIGNATED AS A CIVIL

INFRACTION, specifically: _____ ,

and the conviction is redesignated as follows: _____

Petitioner shall sent a copy of this Order to the Department of Justice, along with any
necessary forms and fees to effectuate the ordered expungement, resentencing, or
redesignation.

Dated this _____ day of _____, 20____.
(date) (month) (year)

(Judge's signature)

REQUIRED ATTACHMENTS AND RECORD MATCHING

Attach the ACTUAL Montana DOJ criminal record before filing. The following facts are synthetic fixture inputs, not a criminal history report, judgment, certified record or court finding.

One conviction in this set: Criminal Possession of Dangerous Drugs (marijuana); MCA 45-9-102; original case TK-2018-009876; conviction 11/15/2018; sentence completed 11/15/2019.

Sentencing court: justice; Lewis and Clark County; Helena, Montana.

Participant: Alexandrina Katherine Montgomery Reyes; other names Alexandrina Montgomery Reyes; birth date 04/17/1991; 118 Maple Street, Apartment 1204, Helena, MT 59601.

Attach the actual judgment/sentencing order (recommended), an actually executed Certificate of Service (required), and the proposed order. Only mark Form B attachment boxes for documents actually included.

Other conviction TK-2018-001235 is NOT consolidated here. Generate a separate full form set for it after its own facts and relief are resolved.

Current synthetic recipient information is for a diagnostic only. Actual service requires verification of the county attorney name and mailing/email address. All provided example addresses must be replaced by actual record-bound recipient facts for participant use.

PARTICIPANT INSTRUCTIONS - MMRTA COMPLETED SENTENCE

COMPLETED SENTENCE ONLY: Form B applies after the entire sentence is complete. It is filed in the court that sentenced you: District, Justice, Municipal or City Court as shown in your records. A person still serving the sentence belongs on Form A, not this packet. One complete form set is required for EACH conviction, even when convictions occurred together. Other conviction identifiers shown in the intake need separate sets; this packet reaches only its named conviction.

PREPARE THE RECORD: obtain your Montana DOJ criminal record; Form B makes this a REQUIRED attachment. Search BOTH Montana Public Access Portals: District Courts and Courts of Limited Jurisdiction (Searches, Case Searches, By Party). Reconcile every discrepancy with the judgment and court record. Obtain the judgment or sentencing order, recommended with the court petition and needed for the DOJ stage if expungement is granted. Never treat the synthetic intake sheet as an actual official record.

LOCAL FILING AND FEES: use <https://courts.mt.gov/CourtLocator/> to contact the sentencing court clerk; confirm all local filing rules, filing method, copies, any required cover sheet and current fee before filing. The adopted May 2024 District Court civil commencement fee is \$120; confirm the current amount. Justice, Municipal and City Court fees differ: ask that court; do not use the District Court fee automatically. You are responsible for other costs, including background records. The CRISS request has no fee.

IF UNABLE TO PAY: obtain the published Statement of Inability to Pay Court Costs and Fees at <https://www.montanalawhelp.org/resource/statement-inability-pay-court-costs-and-fees-interactive-form> and follow the clerk instructions. Its non-commercial-use restriction means this packet links to it; it does not reproduce, convert or rewrite it. No ER-100, ER-200, DS-100 or DS-200 is reproduced.

REVIEW FORM B: confirm your identity, sentencing court, enumerated offense, conviction date and sentence-completion date. Leave the new Case No. blank; the clerk assigns it (OCA instructions step 4). The original conviction case number is shown in the intake for record matching. Complete the remedy election and eligibility narrative yourself after any needed legal help. These have different consequences; this packet does not choose a legal outcome or write your eligibility argument. Other/unlisted offenses, uncertain conduct classification or unresolved remedy consequences require legal assistance. Select the actual attachment and hearing boxes yourself. No hearing is necessary unless you request one; requesting a hearing is an adopted self-help STOP.

SIGN AND SERVE: the court will not consider an unsigned petition. Sign and date Form B; print your full name. No notarization is identified on its face. Serve a copy of the petition and filed attachments upon the COUNTY ATTORNEY FOR THE COUNTY WHERE YOU FILE. OCA Certificate of Service specifies U.S. mail and/or email: confirm the actual recipient and address with that office before service. Complete and sign/date the certificate only after actual service, with or before filing. The certificate is required with the petition; the generator never certifies service or pre-fills its execution date.

FILE THE COMPLETE SET: Form B, actual DOJ criminal record, executed Certificate of Service, proposed order and any additional confirmed attachments. The judgment is recommended. The proposed order leaves every judicial finding, decision, hearing/opposition box, order date and judge signature blank. Only the court decides these. Keep file-stamped copies and verify clerk acceptance. Do not file this synthetic diagnostic packet.

COURT RESPONSE: the county attorney has 21 days to respond in opposition under the OCA instructions. The court considers the petition after a response or expiration of that period. Under MCA 16-12-113(6), the court presumes the criteria unless the county attorney supplies a reasonable basis otherwise. Any opposition is a STOP for legal assistance; no guarantee of relief is made. The court rules without a hearing unless you request one. Follow any actual court notice.

AFTER AN EXPUNGEMENT ORDER: the order alone does not complete DOJ deletion. Obtain the original or certified judgment and court expungement order. The separate CRISS unit is generated ONLY when the actual outcome is EXPUNGEMENT and that order is received; it is not generated merely because relief was requested. Complete the marijuana request type, review your facts and charges, sign/date the DOJ form, attach the required original/certified court documents, and mail to Montana DOJ CRISS, 2225 11th Avenue, PO Box 201403, Helena, MT 59620-1403. The marijuana request does NOT require an FD-258 fingerprint card; do not copy the misdemeanor fingerprint requirement. There is no CRISS request fee. Keep copies and mailing proof and verify DOJ processing by obtaining/checking the updated criminal record.

REDESIGNATION IS DIFFERENT: misdemeanor or civil-infracton redesignation changes classification; it does not expunge the conviction and has no DOJ deletion request stage in this route. Do not submit a marijuana expungement request for redesignation. Follow the signed order and confirm its correction/distribution requirements with the court and DOJ. Resentencing concerns the currently-serving route and is not silently substituted for this completed-sentence route.

TERMS AND LIMITS: expungement is not removal, redesignation or resentencing. DOJ expungement deletes the specified criminal-history record; do not promise destruction of every agency/court copy or permission to deny a conviction. Follow the order and verify any required notice/copies to the arresting agency, prosecutor and clerk; do not stop after receiving the signed order. Whether a cleared record may lawfully be denied is a hard self-help STOP. MMRTA relief does not disqualify a later misdemeanor-expungement petition under MCA 16-12-113(12); that is a separate route with separate requirements.

REQUIRED SELF-HELP STOPS

STOP: Any uncertainty about whether the historical conduct is now permitted or is now punishable by a lesser sentence under Title 16, chapter 12.

STOP: Any offence not on the OCA form's enumerated list, which forces the free-text specify-offence line.

STOP: Any county attorney opposition.

STOP: Any request for a hearing.

STOP: Any noncitizen participant.

STOP: Any participant currently serving the sentence, who belongs on the currently-serving track.

STOP: Any choice among expungement, redesignation as a misdemeanour and redesignation as a civil infraction where the consequences differ.

THIS FIXTURE'S CONDITIONAL STAGE

No received expungement order is present. The DOJ deletion form is not included. A request for expungement alone does not trigger the post-order unit. Redesignation never triggers this deletion unit.

MANUAL PROTECTED INPUTS

Your remedy election, eligibility narrative, hearing election and actual attachments remain blank on Form B. They must be personally resolved/completed before filing; the generator does not select legal consequences or manufacture testimony. Court/prosecutor decisions and all execution fields remain blank.